

Guthi Corporation Act, 1976

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Guthi Corporation Act, 2033 (1976)

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Amending Acts

1. Guthi Corporation (First Amendment) Act, 2041 (1984) 2041.8.24
2. Guthi Corporation (Second Amendment) Act, 2049 (1992) 2049.9.15

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2063.6.28 (2006)

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Act No. 41 of the year 2033 (1976)

An Act Made to Amend and Consolidate the Laws relating to Guthi Corporation

Preamble: Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009).
Whereas a Guthi Corporation has been established to remove Rajguthis from the control of the Government of Nepal and entrust them to a Corporation, and to operate Rajguthis in a well-organized manner; and whereas, with the objective of maintaining good relations among various classes of people and preserving the economic interest and morality of the general public, it is desirable to amend and consolidate the laws relating to the Guthi Corporation and to make more effective and timely provisions,

Therefore, His Majesty King Birendra Bir Bikram Shah Dev has enacted this Act with the advice and consent of the National Panchayat. Chapter-1

Preliminary

1. Short Title, Extent and Commencement: (1) This Act may be called the "Guthi Corporation Act, 2033 (1976)".

(2) This Act extends throughout Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009)..

(3) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Corporation" means the Guthi Corporation established under Section 3.

(b) "Chairperson" means the Chairperson of the Guthi Corporation. Added by the First Amendment.(b1)

"Committee" means the Board of Directors constituted under Section 9. Added by the First Amendment.(b2)
"Member" means a member of the Committee.

Added by the First Amendment.(b3) "Administrator" means the Administrator of the Corporation. (c) "Guthi" means any trust created by any donor by relinquishing his right over his movable or immovable property or any other property or amount yielding income for the purpose of conducting the festival, worship or procession of any matha or any god or goddess, or for any religious or charitable work, including building, operating or maintaining any temple, shrine, rest house, pavilion, well, pond, lake, water spout, water tap, road, ghata, bridge, chautara, grazing land, garden, orchard, forest, library, school, dispensary, hospital, house, building or institution. (d) "Rajguthi" means a Rajguthi, the rights and obligations of which, at the time of commencement of this Act, were vested in the Guthi Corporation and which was being managed and operated by the Guthi Corporation. (e) "Chhut Guthi" means a Guthi which, before the commencement of the Guthi Corporation Act, 2021 (1964), was registered in the government Guthi register, or was required to be so registered, on the condition that from its income, the worship, festival, etc. of the Guthi are conducted according to the deed of endowment, and the remaining surplus or salami of the Guthi is deposited in the Rajguthi, or on the condition that the operator of the Guthi himself may consume the surplus, and for which the land of such Guthi is exempted from paying the land revenue or rent to the Government of Nepal, and the Guthi is registered in a way that the Guthiyar himself can operate the Guthi. (f) "Niji Guthi" means a private Guthi of the public other than Rajguthi and Chhut Guthi. (g) "Guthiyar" means the donor of a Chhut Guthi or Niji Guthi, or the person having the right to operate the Guthi or consume the surplus of the Guthi being a successor of the donor, and the Mahant or Pujari for the time being of such Guthi. (h) "Guthi Raitan Nambari Jaga" means land for which the person whose name it is registered has to pay land revenue to the Corporation. (i) "Guthi Nambari Jaga" means land for which the Corporation, in its capacity as landowner, has to pay land revenue to the Government of Nepal. (j) "Guthi Tainathi Jaga" means land not registered in anyone's name, over which the Guthi Corporation has full rights. (k) "Guthi Adhinashtha Jaga" means land for which the person whose name it is registered has been paying the produce-rent to the Corporation. (l) "Guthi Jimidari" means a Jimidari in any Jimidari mauja in which the Guthi has a right and land revenue is deposited into the Guthi.

Amended by the First Amendment.(m) "Prescribed" or "as prescribed" means prescribed by the Regulations made under this Act or by orders issued by the Government of Nepal by notification published in the Nepal Gazette from time to time. Chapter-2

Establishment and Management

3. Guthi Corporation to remain: (1) The Guthi Corporation established under the Guthi Corporation Act, 2021 (1964) shall be deemed to have been established under this Act and shall continue to exist.

(2) The Corporation shall be a self-governing and organized body with perpetual succession. It shall have a separate seal for its work. It may sue and be sued in its own name.

(3) Subject to this Act and the Regulations made under this Act, the Corporation may acquire, possess, and in any manner transfer movable and immovable property.

(4) The principal office of the Corporation shall be located in Kathmandu. 4. Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009). 5. Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009). 6. Appointment of Employees and Advisors: (1) The Corporation may appoint employees and advisors as required, and their appointment and

conditions of service shall be as prescribed.

(2) Notwithstanding anything contained in Sub-section (1), if the Government of Nepal deems necessary, it may, from time to time, increase or decrease the posts of employees of the Corporation Deleted by the Second Amendment.. 7. Formation of Vidwat Samiti: Amended by Some Nepal Laws Amendment Act, 2063 (2006).(1) There shall be a Vidwat Samiti (Expert Committee) in the Corporation consisting of five members including one Chairperson, nominated by the Government of Nepal from among scholars and saints renowned in the religious, social and educational fields.

(2) The employee designated by the Chairperson of the Corporation shall be the Secretary of the Vidwat Samiti.

(3) The Chairperson of the Corporation shall participate in the meeting of the Vidwat Samiti. Amended by the First Amendment.(4) The term of office of the members nominated under Sub-section (1) shall be four years. They may be re-nominated after the expiry of the term. Provided that if the Government of Nepal deems appropriate, it may nominate another person in place of any member even before the expiry of their term.

(5) Members of the Vidwat Samiti shall receive remuneration or allowance as prescribed for attending the meeting of that Samiti. 8. Consultation with Vidwat Samiti: Amended by the Second Amendment.The Committee may, if it deems necessary, consult the Vidwat Samiti on the following matters:

- (a) Ancient customs and practices relating to Guthi,
- (b) Religious rites, traditions and other arrangements related to religion. 9.

Formation of Committee: (1) For the operation of the work of the Corporation, the Government of Nepal shall constitute a Board of Directors consisting of the following members: (a) Person designated by the Government of Nepal - Chairperson (b) Representative, Ministry of Home Affairs (Gazetteed First Class) - Member (c) Representative, Ministry of Law, Justice and Parliamentary Affairs (Gazetteed First Class) - Member (d) Representative, Ministry of Education and Culture (Gazetteed First Class) - Member (e) Director General, Department of Land Revenue - Member (f) Three persons nominated by the Government of Nepal from the religious and social fields of the country, having experience in Guthi related work - Member (g) Administrator - Member-Secretary (2) If an Executive Chairperson is appointed in the Corporation, the work of the Secretary of the Committee shall be performed by an employee of the Corporation designated by the Chairperson. (3) The term of office of a member nominated under clause (f) of Sub-section (1) shall be three years, and they may be re-nominated after the expiry of the term. Provided that if the Government of Nepal deems appropriate, it may nominate another person in place of any nominated member even before the expiry of their term. Added by the First Amendment.9A. Work, Duties and Powers of the Committee: (1) The Committee shall oversee, control and manage all the works and activities of the Corporation. (2) The Committee shall exercise all the powers and perform the duties vested in the Corporation under this Act. (3) The Committee shall implement appropriate suggestions recommended by the Vidwat Samiti. 10. Repealed by the First Amendment 11. Disqualification for Membership: The following persons shall not be qualified to be a member of the Amended by the First Amendment.Committee or the Vidwat Samiti: (a) Deleted by the First Amendment (b) A person who has been declared insolvent, (c) A person who is insane or of unsound mind, (d) A person who has been convicted by a court of a criminal offence involving moral turpitude and sentenced to imprisonment, (e) A person who has not completed the age of twenty-one years, or (f) A person who is a party to a contract with the Corporation or has a personal financial interest in any transaction with the Corporation. 12.

Circumstances for Ceasing to be a Member: A person shall cease to be a member of the Amended by the First Amendment.Committee or the Vidwat Samiti in the following circumstances: (a) If any disqualification mentioned in Section 11 arises, (b) If the person resigns from the membership, (c) If the Government of Nepal removes the person for being absent from the meetings of the Amended by the First Amendment.Committee or the Vidwat Samiti for three consecutive times without prior permission of the Amended by the First Amendment.Committee or the Vidwat Samiti and without reasonable cause, (d) If, pursuant to the proviso to Sub-section (4) of Section 7 and Sub-section (3) of Section 9, the Government of Nepal nominates another person in place of any member. Added by the First Amendment.12A. Appointment of Administrator: The Government of Nepal shall appoint one Administrator in the Corporation. Amended by the First Amendment.13. Fund of the Corporation: (1) The Corporation shall have its own separate Fund. The following amounts shall be deposited in that Fund: (a) Grant received from the Government of Nepal, (b) Amount received from any regular source, (c) Land revenue or other income received from Guthi land, (d) Amount received upon converting Guthi Adhinashtha Jaga into Raitan Nambari Jaga and registering it, (e) Any other amount received by the Corporation. (2) All cash of the Corporation shall be kept in the Nepal Rastra Bank or in any bank designated by the Committee, in the name of the Corporation. (3) All expenses to be incurred on behalf of the Corporation shall be borne from the Fund of the Corporation. (4) Notwithstanding anything contained in Sub-section (3), the amount received under clause (d) of Sub-section (1) and the amount received from the sale of property held in the name of the Corporation shall be kept as a Permanent Fund (Akshay Kosh) of the Corporation, and such amount shall not be spent on annual recurring expenses except for depositing in a fixed deposit account in any bank or making permanent investments such as constructing houses or shops. At least twenty-five percent of the income derived from the investment of the Permanent Fund must be compulsorily deposited back into the same Fund, and the remaining amount may be spent on the work of the Corporation. 14. Accounts and Audit of the Corporation: (1) The accounts of the Corporation shall be maintained in accordance with the prevailing Nepali law. (2) The audit of the Corporation shall be conducted by the Auditor General. 15.

Fiscal Year and Annual Report of the Corporation: (1) The fiscal year of the Corporation shall be the same as that of the Government of Nepal. (2) The Corporation shall submit an annual report of its financial position and its work to the Government of Nepal within six months of the end of each fiscal year. Chapter-3 Work and Duties of the Corporation 16. Management and Operation of Rajguthi: (1) The Corporation shall, for the management and operation of its trust Rajguthis, mathas and temples, appoint Mahants, Pujaris, managers and other workers and employees as required, and shall have the work such as festivals, worship, etc., conducted directly under trust management as per the deed of endowment, if any, and tradition; and the income from such trust Rajguthi, matha, temple shall be deposited in the Guthi Fund and Guthi Produce Stock, and expenses shall be borne from the Guthi Fund and Guthi Produce Stock itself. (2) In the case of Chhut Guthis and Niji Guthis converted into Rajguthis, the Corporation, without discontinuing the festivals, worship, etc., required to be performed according to the deeds, documents and traditions of such Guthis, and without causing the lapse of religious practice, and without reducing or unnecessarily cutting down the existing posts of workers, employees and expenditure, may fix a term of up to five years and entrust the management and operation of such Guthi to the registered Guthiyar, Mahant, Pujari or any other person who has been operating it previously, under the supervision, control and direction of the Corporation itself, without necessarily operating the Guthi work under trust management as per Sub-section (1). Provided that, upon such entrustment, after deducting expenses according to the established posts, the remaining income shall be deposited with the Corporation. 17.

Work, Duties and Powers of the Corporation: Except as expressly provided in this Act, the work, duties and

powers of the Corporation shall be as follows: (1) To manage and operate Rajguthis, vesting rights and obligations in the Corporation, (2) To take over Chhut Guthis and Niji Guthis into Rajguthis and manage and operate them under trust management, or cause them to be operated as provided in this Act, (3) To conduct or cause to be conducted religious festivals, worship, etc., according to the deed of endowment or tradition, without letting the religious practice lapse, (4) To utilize the movable and immovable property of Rajguthis or the income therefrom for existing and any additional religious, educational, social, cultural or charitable institutions or works, (5) To reduce unnecessary expenditure from the income of Rajguthis, prevent leakage, and create new posts of employees and expenditure as necessary for operating Rajguthis in a more organized manner, (6) To receive any grant, donation, endowment, movable and immovable property, Added by the First Amendment.(6a) To manage offerings (bheti-ghati) made at mathas and temples, Added by the First Amendment.(6b) To maintain an inventory and preserve or cause to be preserved ancient ornaments and religious and cultural objects, Added by the First Amendment.(6c) When expenditure is required for the work of any Guthi, to spend as far as possible from the income of that same Guthi, (7) To engage in farming, horticulture and animal husbandry, (8) To give contracts or make agreements on behalf of the Corporation for performing any work required to be done from a Rajguthi, (9) To build houses and shops and rent them out, (10) To initiate any legal proceedings required to be conducted on behalf of the Corporation or defend any legal proceedings instituted against the Corporation and act according to the court's judgment, (11) To operate Guthis from the income amount of Rajguthis, spend for them, establish a reserve fund from the remaining amount, and make secure investments from that fund, (12) To cultivate Guthi Tainathi Jaga itself or have it cultivated by appointing a tenant (Mohi), (13) To perform other incidental works while managing and operating Rajguthis according to this Act and prevailing law. 18.

Works Not to be Performed by the Corporation: The Corporation shall not perform the following works: (1) Relinquish ownership of Guthi land without the approval of the Government of Nepal, (2) Register Guthi waste land as Nambari in contravention of the policy of the Government of Nepal, (3) Perform any work, financial transaction or other arrangement relating to management that causes loss to the Corporation or obstructs the religious work of a Rajguthi. 19. Rights and Obligations of Chhut Guthi to Vest in Corporation: All Chhut Guthis shall be converted into Rajguthis, and all rights existing over the movable and immovable property and deity images of such Chhut Guthis shall vest in the Corporation, and all rights of the Guthiyars and Khannidars of such Chhut Guthis shall be extinguished. Amended by the Second Amendment.19A. Inventory of Niji Guthi: (1) The Guthiyar of a Niji Guthi shall submit an inventory of the Guthi to the Corporation in the format as prescribed. (2) After receiving the inventory under Sub-section (1), the Corporation shall maintain separate inventories, as prescribed, of Niji Guthis maintained for personal or family purposes and those maintained for social benefit. Amended by the Second Amendment.20. Corporation may take over Rights and Obligations of Niji Guthi: (1) If all or a majority of the Guthiyars, including the donor, of any Niji Guthi make a written request that the Corporation itself undertake the rights and obligations of such Niji Guthi and manage and operate it, the Corporation may take over the rights and obligations of such Guthi and manage and operate it. (2) If it appears that the Guthiyar of a Niji Guthi maintained for social benefit, excluding Niji Guthis maintained for personal or family purposes, has not operated the Guthi according to the terms written in stone tablets, religious deeds, endowment deeds, etc., and has misappropriated the Guthi property, the Corporation may take over charge of such Guthi and manage and operate it, even if the Guthiyar has not made a written request. (3) The Guthi Corporation may take over the administration of all types of Guthi land that are subject to paying revenue (kut) to the Pashupati Amalkot Kachahari or related to Pashupati Guhyeshwari, and manage and operate them. (4) After the Corporation takes over the rights and obligations under Sub-section (1) or (2), such Niji Guthi shall be

converted into a Rajguthi, and all rights existing over the movable and immovable property and deity images of such Niji Guthi shall vest in the Corporation, and all rights of the donor, Guthiyar and Khannidar of such Niji Guthi shall be extinguished. 21.

Submission of Details and Property of Chhut Guthi and Niji Guthi Converted into Rajguthi: The donor, Guthiyar or person operating the Guthi of a Chhut Guthi or Niji Guthi converted into Rajguthi under Sections 19 and 20 shall, within six months of the notification published by the Corporation, submit to the Corporation the details of the movable and immovable property of such Guthi and all documents including the inventory (syaha shresta) as specified by the Corporation. Chapter-4 Abolition of Guthi Jimidari 22. Abolition of Guthi Jimidari: Guthi Jimidari is abolished. As a result of such abolition, all rights of the Jimidar and Patwari related to the Jimidari of the concerned Guthi mauja shall be deemed to have been automatically extinguished. Provided that, in the case of land attached to the Jimidari, it shall be registered in the name of the Jimidar whose Jimidari has been abolished as Guthi Raitan Nambari. 23. Documents Relating to Jimidari: A person in whose custody the documents of a Guthi Jimidari are held shall, upon being ordered by the Corporation, submit such documents to the Corporation. 24. Interim Arrangement for Collection and Recovery of Land Revenue: Until the Corporation makes arrangements and gives notice regarding the collection and recovery of land revenue of the abolished Guthi Jimidari, the concerned Jimidar or Patwari shall collect and recover the land revenue as before and deposit it with the Corporation. Chapter-5 Rajguthi Land Amended by the First Amendment.25.

Management of Guthi Tainathi Jaga: Amended by the Second Amendment.(1) The Corporation may itself cultivate Guthi Tainathi Jaga or have it registered by auction. (2) In the case of waste or fallow land among Guthi Tainathi Jaga, the Corporation may, depending on the situation, make any of the following arrangements: (a) Cultivate it itself, (b) Allow a specific farmer to cultivate it by remitting the revenue (kut) for some years as prescribed, Deleted by the Second Amendment and (c) Deleted by Some Nepal Laws Amendment and Repeal Act, 2072 (2015) (3) Notwithstanding anything contained in Sub-sections (1) and (2), if any Guthi Tainathi Jaga is found suitable for building houses, plots, or for industry or business, the Corporation may, considering the use and importance of the place, have it auctioned as prescribed Deleted by the Second Amendment and convert it into Guthi Raitan Nambari Jaga and register it Added by the Second Amendment.and, in the case of those who have already built houses and are residing by investing their own capital on Guthi Tainathi Jaga before 26 Chaitra 2046 (April 9, 1990), such house plots may be converted into Raitan Nambari and registered in their own name based on the valuation determined by the valuation committee as provided elsewhere in this Act. (4) Notwithstanding anything contained in Sub-sections (1), (2) and (3), land that is a shrine site or religious and public vacant land related to deities, shrine sites, festivals, worship, and processions shall not be registered in the name of any individual. Even if such land has been registered, the Corporation may cancel such registration. 26. Management of Guthi Adhinashtha Jaga: (1) After the commencement of this Act, in the Kathmandu Valley and Hill districts, in respect of Guthi Adhinashtha Jaga where the actual tiller pays revenue (kut) to the registered landholder and the registered landholder tenant (Mohi) is required to pay the full produce-rent or partial produce-rent and partial cash valuation to the Rajguthi, all rights of the registered landholder shall be extinguished, and the Corporation shall acquire full ownership of such land, and the actual tiller farmer on such land shall have tenancy rights (Mohiyani hak) in accordance with the prevailing law. Amended by the First Amendment.(2) The registered landholder tenant whose rights are extinguished under Sub-section (1) shall receive, as compensation, an amount equal to ten times the land revenue applicable to his original land according to the prevailing law, as prescribed. The registered landholder entitled to such compensation shall receive the compensation amount after deducting any arrears payable to the Guthi.

Amended by the First Amendment.(3) The compensation amount to be given to the registered landholder tenant under Sub-section (2) shall be deposited by the actual tiller farmer, whose rights arise upon the extinction of the registered landholder's rights, with the Corporation as prescribed. Added by the First Amendment.(3a) If it is found that the registered landholder tenant has failed to pay the revenue (kut) payable to the Corporation and arrears have accumulated, the tiller farmer shall submit to the Corporation proof of having paid the revenue for such arrears period to the registered landholder tenant. Added by the First Amendment.(3b) If the proof of payment of revenue as per Sub-section (3a) cannot be submitted, the revenue for the period for which proof cannot be submitted shall be paid to the Corporation. Amended by the First Amendment.(4) If the actual tiller farmer, whose rights arise upon the extinction of the rights of the registered landholder tenant, does not deposit the compensation amount as specified in Sub-section (3), or does not pay the arrears of revenue as per Sub-section (3b) as prescribed, then proceedings may be taken as in the case of non-payment of revenue for such land, and another tenant may be appointed upon taking prescribed fees (dastur) for such land. Amended by the First Amendment.(5) If another tenant is appointed as a result of proceedings under Sub-section (4), such tenant shall deposit with the Corporation, as prescribed, the remaining compensation amount payable to the registered landholder tenant whose rights were extinguished under Sub-section (3) and the revenue amount under Sub-section (3b). (6)Deleted by the First Amendment. (7) Notwithstanding anything contained in this Section, if anyone has acquired a right under the law on any Guthi Adhinashtha Jaga and built a house and residence, such portion of land up to the limit of land allowed to be kept for house and residence under prevailing Nepali law shall be registered in the tenancy (Mohiyani) of that person. Chapter-6 Provisions Relating to Tenant (Mohi) 27. Tenancy Rights to Apply: The actual tiller farmer on Guthi land shall have tenancy rights (Mohiyani hak) according to the prevailing law. Amended by the Second Amendment.Provided that, (a) A Rakami who has the right to till and enjoy land in lieu of performing specific work for the Guthi shall not have tenancy rights on such land. (b) Tenancy rights shall not apply to Guthi land that is an orchard not previously cultivated, or to vacant Guthi land in designated towns or cities. 28.

Revenue (Kut) Payable on Guthi Land: (1) On Guthi land for which revenue (kut) is payable to the Corporation, revenue shall be levied at the same rate as that received by a holder of government Raikar land from a tenant according to the place and type of land. Added by the First Amendment.Provided that, if at the time of commencement of this Act, a lower revenue than that prescribed according to the type was being paid, the revenue shall continue to be levied accordingly. Amended by the First Amendment.(2) If, at the time of commencement of this Act, the tenant has been paying produce-rent in kind such as paddy, rice, maize, millet, wheat, etc., other than in other forms, the tenant shall continue to pay the same kind of produce-rent as before. Provided that, the value of the in-kind goods under this Sub-section shall not be collected in a manner that results in a value per ropani or bigha exceeding the value of the revenue (kut) payable by the tenant under Sub-section (1). Added by the First Amendment.(3) The Corporation shall have the authority to determine the value of the in-kind produce to be paid by the tenant under Sub-section (2). Added by the First Amendment.(4) The tenant may also pay the revenue levied on Guthi land in cash at the local market rate. Added by the First Amendment.(5) If the revenue is paid at the time specified for payment in Sub-section (1) of Section 29, the Corporation may grant up to a fifteen percent discount on the revenue to the payer. 29. Provisions Relating to Payment of Revenue: (1) The tenant of Guthi land who is required to pay revenue to the Corporation shall pay the revenue to the Corporation within the season and time by which a tenant of government Raikar land pays revenue. If the revenue is not paid within that period, the Corporation may terminate the tenancy rights of such tenant. Provided that the Corporation may extend the period for paying the revenue by up to two months if necessary. (2) If the tenancy rights are terminated under Sub-section (1),

the tenant who is dissatisfied may file a complaint before the Government of Nepal within thirty-five days. (3) The decision made by the Government of Nepal on a complaint filed under Sub-section (2) shall be final. (4) The Corporation may recover the remaining revenue on the land whose tenancy rights have been terminated under Sub-section (1) from the former tenant as if it were a government arrears. (5) Matters relating to remission (minha) of revenue payable to the Corporation shall be in accordance with the prevailing Nepali law. 30.

Special Provision for Sale and Purchase of Tenancy Rights: Notwithstanding anything contained in the Land Reform Act, 2021 (1964) and other prevailing Nepali laws, the tenancy right of land acquired under tenancy rights pursuant to this Act may be sold and purchased. Added by the First Amendment.30A. Prohibition on Sale of Khangri Land: The holder of Khangri land of a Guthi shall not mortgage or in any other manner relinquish rights over such Khangri land, and if rights are so relinquished, the deed of relinquishment shall be deemed void ab initio. Amended by the Second Amendment.31. Regarding Land that has Fallen Vacant (Ukas): The Corporation may itself cultivate or utilize for any other purpose land that has fallen vacant due to non-payment of revenue or other amounts payable to the Corporation. 32. Land Revenue Payable on Guthi Raitan Nambari Jaga: (1) The holder of Guthi Raitan Nambari Jaga shall pay land revenue to the Corporation at the same rate as a holder of government Raikar land pays land revenue to the Government of Nepal according to the type of land. (2) The rights and status of a holder of Guthi Raitan Nambari Jaga shall be the same as those of a holder of government Raikar land under the prevailing law. (3) For the purposes of this Section, "landholder" (jagawala) means a person in whose name Guthi land is registered in such a way that he is required to pay land revenue to the Corporation, and who therefore has rights over such land by virtue of such registration, and also means the successor or heir of such person, or a person who has become entitled to have such land registered in his name because such person has relinquished his rights in accordance with the prevailing Nepali law. 33. Arrangement for Collection of Land Revenue: (1) The Corporation shall make arrangements for the collection of land revenue. (2) The period for collecting land revenue shall be as specified in the prevailing Nepali law. The provisions of the prevailing Nepali law regarding imposing fines for default in payment within the collection period, auctioning land for arrears of land revenue, and granting remission shall also apply to the land revenue collected by the Corporation. Offices designated for the collection and recovery of Guthi land revenue shall also be entitled to exercise the powers relating to the collection of land revenue under the prevailing Nepali law. 34.

Arrangement for Recovery of Rent and Ground Rent: (1) In cases where ground rent has been collected for allowing construction of houses or shops on Guthi land, or where the Guthi itself has built houses or shops or has rented out pavilions (pati pauwa), the Corporation may, after the commencement of this Section, require new agreements (kabuliyat) to be made regarding such ground rent or rent. When requiring new agreements in this manner, the amount of ground rent or rent shall be as specified by the Corporation. (2) A person living on rent or ground rent shall make a new agreement within the period specified by the Corporation. If the agreement is not made within that period, the right of such tenant or ground tenant to use and occupy the house or shop shall be automatically extinguished, and the Corporation may rent out such house or shop to another person or may use and occupy it itself. 35. Registration as Tenancy on Payment of Fee (Dastur): (1) If, before the commencement of this Act, ground rent was being charged on Guthi land, and the ground tenant wishes to get the land registered under tenancy rights, the Corporation may, upon payment of a fee as prescribed, register it under tenancy rights. (2) If, at the time of commencement of this Act, someone has already built a house on Guthi land without the Corporation's approval, the Corporation may, upon payment of a fee as prescribed, register such land under tenancy rights. (3) If, after the commencement of this Act, anyone requests the Corporation's approval to build a house on Guthi land registered under tenancy rights in

someone's name, or on waste or fallow Guthi land not registered in anyone's name, or on a Guthi orchard, the Corporation may, upon payment of a fee as prescribed, grant approval. If anyone builds a house on such land without the Corporation's approval under this Sub-section, the rights of such person over such land and the house built on such land shall be extinguished and the rights of the Corporation shall vest.

Provided that, if the Corporation believes that there was no bad faith on the part of the person who built the house before the commencement of this proviso, the Corporation may, with the approval of the Government of Nepal, register it under tenancy rights upon payment of an additional fee as prescribed. (4) Notwithstanding anything contained in Sub-sections (1), (2) and (3), it shall not be necessary to obtain the Corporation's approval to build a house on Guthi Raitan Nambari Jaga. 36. Deleted by Some Nepal Laws Amendment and Repeal Act, 2072 (2015) Chapter-7 Miscellaneous 37. Provision Relating to Ceiling Limit: All provisions of the prevailing Nepali law relating to the ceiling limit shall apply to the holder of Guthi Raitan Nambari Jaga and the tenant of Guthi land, and for that purpose, both Guthi land and government Raikar land shall be counted together to determine the ceiling limit. 38. Special Provision Relating to Guthi Tainathi Jaga: If any person has in any manner obtained settlement (bandobasti) of land which is Guthi Tainathi Jaga under this Act, contrary to the interest of the Rajguthi and the Corporation, such rights obtained through settlement after the commencement of the Guthi Corporation Act, 2021 (1964) shall be automatically extinguished, and the rights and ownership of the Corporation and the Rajguthi over such land shall be re-established. Provided that- (1) If the land obtained through settlement has been used for a house and residence, to the extent permitted by other prevailing laws, it shall be registered as Guthi Raitan Nambari in the name of such person; for the remaining land, revenue (kut/tiro) shall be payable to the Corporation under this Act. (2) This Section shall not apply to land registered as Guthi Raitan Nambari in anyone's name up to ten bighas